

SERVICES AGREEMENT

This Agreement (this "Agreement") is entered into as of the 1st day of January, 2010 by and between **ISLAND PROPERTIES & ASSOCIATES, L.L.C.**, a New York limited liability company (the "Servicer") and **MANGOTREE REAL ESTATE HOLDINGS, L.P.**, a New York limited partnership (the "Client"), (Servicer and Client, collectively, the "Parties" and, individually, a "Party").

WITNESSETH:

WHEREAS, Servicer provides asset management and real estate disposition services to lending and investment institutions and funds, as set forth in Schedule A, attached hereto;

WHEREAS, Client plans to acquire certain real estate assets and properties some of which the Client desires the assistance of outside service providers for research, identification, acquisition, management and disposition services; and

NOW, THEREFORE, in consideration of the mutual promises and covenants herein and for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

Section 1. Definitions.

1.1. Agreement: Shall mean this document including all of its Schedules, Attachments and Appendices.

1.2. Asset: Shall mean an Asset to which Client has or may acquire title or otherwise rights, whether residential or commercial real estate and receivables, and which is under the management of Client.

1.3. Direct Expense: Shall mean with respect to each Asset closing costs, transfer taxes, title insurance fees, title recording expenses, eviction costs, utilities, repairs, real property taxes (including school and library taxes) and reasonable legal fees directly connected to each Asset, but nonetheless shall exclude any such expenses that arise from actions of Servicer for which Servicer is obliged to indemnify Client as provided in Section 2.13(b) below.

1.4. Net Proceeds: The amount received from the sale, settlement or disposition of an Asset after the deduction of usual and customary closing costs, and commissions, and Direct Expenses.

1.5. Settlement Account: Shall mean that account to which Net Proceeds are to be transmitted via wire transfer upon the sale, settlement or disposition of an Asset as directed by Client in writing.

1.6. Services: Shall mean those management and disposition functions and services described on Schedule A and attached hereto as the same may be amended from

time to time by written consent of the Parties. In the event of conflict, the descriptions in Schedule A will control.

1.7. Servicing Fees: The fees defined in Schedule B attached hereto.

1.8. Reimbursement Request: The summary of all Direct Expenses, if any, advanced by the Servicer in the prior calendar month. Summary shall also include billing for Servicing Fees provided for in Section 5.1.

Section 2. General Provisions.

2.1. Agreement Term: This Agreement shall have an initial term of five (5) years, commencing as of the date set forth above subject to up to two three-year extensions at the discretion of the Client exercisable upon 30 days prior notice of such exercise prior to the expiration of the then current term (the "Initial Term"). After the expiration of the Initial Term and any extensions as otherwise provided for herein, the term shall thereafter automatically renew from month to month until either Party terminates by giving thirty (30) days written notice.

2.2. Acceptance of Assets:

(a) Client retains Servicer to manage, preserve, protect, operate, maintain, improve and/or dispose of, in accordance with the terms of this Agreement and pursuant to the requirements outlined in this Agreement, the Assets referred to Servicer by Client from time to time in Client's sole discretion, as set forth on Schedule A attached hereto. The Servicer is to perform the Services in a manner consistent with industry standards and in accordance with applicable laws.

(b) Client may withdraw any Asset referred to Servicer for servicing upon notice thereof to Servicer in writing; provided, however, (i) Client shall not have the right to withdraw an Asset from management if and for so long as an approved contract for the sale of the Asset shall be in effect, and (ii) Servicer shall still be entitled to its Servicing Fees set forth herein with respect to such Asset unless such Asset was withdrawn due to a default by Servicer as defined in Section 3. Upon the withdrawal by Client of any Asset, Client shall remain liable for all Direct Expenses that were incurred by Servicer or its vendors through the date that the Asset was withdrawn. The date of withdrawal of the Asset shall be the date set forth in the notice from the Client.

2.3. Termination For Cause: This Agreement may be terminated (a "For Cause Termination") immediately (a) by Servicer upon giving written notice to Client of Client's failure to make any payment when due after giving effect to the expiration of any cure periods provided for herein or (b) by either Party giving written notice to the other Party of any other default by the other Party under the terms of this Agreement, which default is not cured within the time period provided herein.

2.4. Responsibilities Upon Termination: Upon the termination of this Agreement, Servicer will return control of the management and marketing of all Assets not then under an approved contract of sale with third party buyers, and all files, records and data pertaining thereto, to Client within a reasonable time not to exceed the later of the effective date of termination or 5 calendar days after Client gives notice of termination of this Agreement. In the event there are Assets under an approved contract of sale at the time of termination of this Agreement, Servicer shall continue to provide services under this Agreement through the closing of those contracts of sale; provided, however, that if any Asset under an approved contract of sale fails to close within thirty (30) days from the scheduled date of closing, at Client's option, Client may instruct Servicer to forward to Client all files, records and data pertaining thereto and Servicer shall have no further rights or obligations hereunder with respect to such Assets. Client shall be obligated to pay all fees and Direct Expenses associated with all Assets set forth in this Agreement through the later of the date of termination or extension of termination relating to the closing of an approved contract of sale.

2.5. Assignment and Succession: This Agreement shall inure to the benefit of and be binding upon the successors and assigns of the Parties hereto; provided however, that the Servicer may not assign its rights, obligations and responsibilities hereunder without the prior written consent of Client.

2.6. Independent Contractor Status: Nothing contained in this Agreement shall be construed to imply a joint venture, partnership or principal and agent relationship between or among Servicer or Client and neither Party shall have any right, power or authority to create any obligations, express or implied, on behalf of the other Party except as permitted herein. Servicer and its employees are not employees or agents of Client and are not entitled to any of Client's employee benefits.

2.7. Confidentiality: Each Party recognizes that it must conduct its activities under this Agreement in a manner designed to protect any information concerning the other Party, the other Party's parent and affiliates, and the other Party's customers and suppliers (collectively "Confidential Information") from improper use or disclosure. Each Party agrees to (i) receive the Confidential Information in confidence and refrain from disclosing or discussing any portion of the Confidential Information with any third person or entity; (ii) use the same degree of care in protecting the Confidential Information as such Party uses to protect its own proprietary information; and (iii) not use any of the Confidential Information, except for the sole purpose of performing services on behalf of the other Party. Each Party's obligations to protect the Confidential Information as set forth above shall survive the termination of this Agreement and continue until waived in writing by the other Party. Servicer understands that portions of the Confidential Information may be subject to the Gramm-Leach-Bliley Act of 1999 (the "GLB")

and Servicer agrees to treat such information as required by the GLB for financial institutions.

2.8. Disclosure: Except as required by law, neither Party shall disclose the terms and conditions of this Agreement to third parties (except Client's auditors, attorneys, accountants, limited partners, prospective investors or third parties whose review is mandated by law) without prior written authorization from the other Party.

2.9. Insurance Requirements: Servicer shall obtain and maintain, as a minimum, the insurance policies and coverages specified in Schedule C attached hereto and incorporated herein by this reference, including for all Assets. In the event additional types of amounts of insurance are required by Schedule A, the requirements of Schedule A shall control.

2.10. Payment Terms:

(a) Any Direct Expense other than as budgeted shall require the prior written consent of Client to be eligible for reimbursement hereunder. A Reimbursement Request detailing all Direct Expenses paid by Servicer in the normal course of its business in the prior calendar month shall be submitted to Client by the tenth (10th) calendar day of the month following the prior month. All final (utilities, tax refunds) Direct Expenses shall be submitted to Client no later than sixty (60) days from the date of the applicable closing of any given Asset, unless notice is given to the Client of the inability to obtain final Direct Expenses. Any payment due hereunder which is due on a day which is not a business day shall be due on the succeeding business day.

(b) Client agrees to pay (or cause to be paid) Direct Expenses as soon as practicable but in any event within thirty (30) days (the "Due Date") from the date Client receives the Reimbursement Request. Client agrees that no dispute or claim as to a portion of any invoice shall be cause for Client's withholding of the portion of the Reimbursement Request not in dispute. Servicing Fee will be determined and paid as set forth on Schedule B.

2.11. Audit of Records: Servicer shall maintain complete records of all transactions under this Agreement for a period of at least seven (7) years from the latest closing of contract for the sale of an Asset under this Agreement; provided however, if before the expiration of such time, Client directs Servicer to transfer all such records to Client, Servicer shall promptly so transfer all such records in a commercially reasonable manner and at the expense of Client. Such records shall be available for audit by Client or Client's audit at Client's expense at the office of Servicer during regular business hours. The Parties agree that any records of the other Party or any copies thereof shall be Confidential Information and subject to Sections 2.7 and 2.8 above.

2.12. Real Estate Broker Fees: Provided that same do not represent a conflict of interest of Servicer's duties and responsibilities under this Agreement, Client

acknowledges that Servicer may receive usual and customary real estate broker fees for services associated with this Agreement. Real estate broker fees collected by Servicer shall be disclosed on the HUD-1 closing statements. These fees are separate and distinct from the Servicing Fees referenced in Section 2.10. Such fees shall not exceed \$_____ per Asset.

2.13. Indemnification: The Parties acknowledge and agree that the effect of this Agreement shall result in no transfer of risk from Client to Servicer. The following indemnifications shall survive the termination of this Agreement.

(a) Client shall indemnify, defend and hold Servicer and its officers, directors, employees, parent companies, affiliates, subsidiaries, successors and assigns harmless from any and all claims, demands, causes of action, losses, damages, fines, penalties, liabilities, costs and expenses, including reasonable attorney's fees and court costs, sustained, incurred by, or asserted against Servicer by reason of or arising directly from actions of Servicer that are within the scope of its authority hereunder and which do not constitute malfeasance, willful misconduct, negligence or a breach of the terms of this Agreement by Servicer or any of its agents, servants or employees, or other persons under its direction or control.

(b) Servicer shall indemnify, defend and hold Client and its officers, directors, employees, parent companies, affiliates, subsidiaries, successors and assigns harmless from any and all claims, demands, causes of action, losses, damages, fines, penalties, liabilities, costs and expenses, including reasonable attorney's fees and court costs, sustained or incurred by, or asserted against, Client by reason of or arising directly from actions of Servicer that are outside the scope of its authority hereunder or as a result of any actions or omissions of Servicer that constitute malfeasance, willful misconduct, negligence or a breach of the terms of this Agreement by Servicer or any of its agents, servants or employees, or other persons under its direction or control.

2.14. Representations: Each Party represents to the other Party as follows:

(a) Such Party has been duly organized and validly exists as a corporation, limited partnership or limited liability company in good standing under the laws of its jurisdiction of formation and has full power and authority necessary to enter into and perform its obligations under this Agreement.

(b) This Agreement has been duly and validly authorized by all necessary corporate or company action and, upon execution by the Parties; this Agreement will be the legal, valid and binding agreement of such Party.

(c) The execution and delivery of this Agreement do not, and the performance of this Agreement will not, violate or conflict with the formation or governing documents of such Party, any material agreement binding upon such Party or any law, order, rule or regulation applicable to such Party.

Section 3. Default.

With respect to any Party hereto, the occurrence of one or more of the following shall constitute a default.

- 3.1. Any representation or warranty made by such Party in this Agreement or pursuant hereto being false, incorrect or misleading in any material respect on the date on which made;
- 3.2. Except as provided by 3.6 hereunder, failure on the part of such Party duly to observe or perform in any material respect any of the covenants or agreements on the part of such Party set forth in this Agreement which failure continues unremedied for a period of twenty (20) days after the date on which written notice of such failure is given;
- 3.3. The entry against such Party of a decree or order of a court having jurisdiction for the appointment of a conservator, receiver or liquidator in any insolvency, readjustment of debt, marshaling of assets and liabilities or similar proceedings, or for the winding-up or liquidation of such Party's affairs, and such decree or order remaining in force undischarged or unstayed for a period of sixty (60) days;
- 3.4. The consent of such Party to the appointment of a conservator, receiver, trustee in bankruptcy or liquidator in any insolvency, readjustment of debt, marshaling of assets and liabilities or similar proceedings of or relating to such Party;
- 3.5. The admission of such Party in writing of its inability to pay its debts generally as they become due, the filing by such Party of an assignment for the benefit of its creditor or such Party voluntarily suspending payment of its obligations, or a voluntary or involuntary filing against such Party in bankruptcy;
- 3.6. The failure on the part of Servicer to timely make payments pursuant to Section 4.1. of this Agreement, which nonpayment continues for 5 days after receipt of notice from Servicer; and/or
- 3.7. The failure on the part of the Client to reimburse the Servicer per the terms of this Agreement stated in Section 5.1 or 2.10(b) of this Agreement, which nonpayment continues for 5 days after receipt of notice from Services.

Section 4. Services.

- 4.1. Servicer shall perform the Services in accordance with the terms of this Agreement, including Schedule A attached hereto. Servicer shall remit the Net Proceeds from each disposition of an Asset to the Settlement Account on the date of such disposition.

4.2. Most Favored Nation Clause. Servicer will provide the same Service to Client as it does its other top clients, such that Client will have the same opportunity to purchase Assets as Servicer's other clients, and will receive any and all information about opportunities as Servicer's other clients. In the event that Servicer does not provide Client with any information to which it provided any other client, Servicer will be deemed to be in breach of this Agreement.

4.3. Right of First Refusal. Servicer hereby grants to Client a right of first refusal (the "Right of First Refusal") over any potential Assets identified by Servicer in Long Island and New York City (the "Region"); provided that Servicer shall not be subject to the Right of First Refusal until Client has a minimum of \$3 million in Assets. In the event that Servicer identifies a potential Asset in the Region, Servicer will provide Client with a notice (the "RFR Notice") within five (5) days thereof, setting forth the terms of such plant, including the location and price. Client will then have three (3) days to accept the RFR Notice, and the payment for the subject Asset and closing thereon must be made in a timely fashion or the Right of First Refusal for such Asset shall be considered forfeited.

4.4. Noncompetition. During the Initial Term and any renewal term of this Agreement, the principals of Servicer shall not will not directly or indirectly provide any personal service or engage in any business that competes with any service provided by or rendered by the Servicer in the Region, including owning an equity stake in and/or serving as an officer, director, manager, employee or consultant to any corporation, limited partnership, limited liability company or other entity engaged in a business similar to that of the Servicer.

Section 5. Fees.

5.1. Servicing Fees: Servicer will charge the Client a servicing fee calculated in accordance with Schedule B for each Asset. The servicing fee will be submitted in the Reimbursement Request pursuant to Section 1.7 and 2.10 (a).

Section 6. Indemnification

6.1. Servicer agrees to indemnify, defend and hold the Client, its officers, directors, employees, successors, and assignees harmless from and against any and all liability, losses, damages, costs, penalties and expenses (including without limitation, attorneys' fees) (collectively "Losses") arising out of or relating to (i) any and all claims or complaints of any person or entity with respect to any of the methods, procedures, devices or communications employed or made by Servicer, (ii) any violation of any applicable law, rule or regulation by Servicer in connection with the services provided hereunder and (iii) Servicer's failure to comply with any of the terms and conditions of this Agreement. Client and Servicer shall each promptly provide the other with written notice of any claim, suit or action which may give rise to a right of indemnification for Client. The failure of Client to give prompt notice shall not relieve Servicer of its obligations to indemnify hereunder

except to the extent Servicer is materially prejudiced by such failure. If any such claim, suit or action of any kind is commenced against Client, Servicer will, if requested by Client, assume at Servicer's expense the defense of such claim, suit or action and Servicer shall be liable for the costs and expenses thereof, including, without limitation, attorney's fees. Client, in its sole discretion and at its expense, may retain its own counsel and defend such claim, suit or action. Client will cooperate fully with Servicer and its counsel in any claim, suit or action.

Section 7. Miscellaneous Provisions.

7.1. Amendments and Modifications: This Agreement may be amended, changed, modified or altered only by an instrument in writing executed by the Parties.

7.2. Waivers: Any waiver by any Party of a breach of any provision of this Agreement will not operate as or be construed to be a waiver of any other breach of such provision or any other provision of this Agreement. The failure of any Party to insist upon strict adherence to any term of this Agreement will not be considered a waiver or deprive any Party of the right thereafter to insist upon strict adherence to any term of this Agreement. In addition, in granting any waiver, the waiving Party will exercise its best efforts to ensure that all Parties continue to have substantially equivalent rights, benefits, privileges, duties and responsibilities.

7.3. Severability: If any provision of this Agreement is held to be invalid or unenforceable under any applicable statute or rule of law, then the affected provision shall be curtailed and limited only to the extent necessary to bring said provision within the legal requirements and which preserves the original intent of the parties and this Agreement as so modified shall continue in full force and effect.

7.4. Tax Consequences: Client and Servicer acknowledge that the other Party has made no representations concerning the tax consequences of any transaction under this Agreement.

7.5. Governing Law; Venue: This Agreement shall be construed in accordance with the laws of the State of New York and the obligations, rights, and remedies of the Parties hereunder shall be determined in accordance with such laws. Each party submits to the exclusive jurisdiction of the state and federal courts in the County of Nassau, New York, waiving any objections to venue or jurisdiction.

7.6. Headings: The headings of the various sections and paragraphs of this Agreement have been inserted for convenience and reference only and shall not be deemed to be part of this Agreement.

7.7. Notices: Any notices under this Agreement to any Party shall be in writing and shall be deemed to have been given if mailed certified mail, postage prepaid, or delivered by overnight carrier or express mail, by facsimile subject to confirmation of receipt, e-mail, or personally delivered, addressed to the Party at the following address or to such address as such Party may designate by written notice:

Send notices to Servicer as follows:
Island Properties & Associates, L.L.C.
45 Sarah Drive
Farmingdale, New York 11735
Fax: 631-773-6165
Email: dderosa@ipellc.net
Attention: Mr. David DeRosa

Send notices to the Client as follows:

MangoTree Real Estate Holdings, L.P.
24 Oak Lane
Roslyn Heights, NY 11577-2600
Email: rakesh.bhargava@gmail.com
Attention: Rakesh Bhargava

With a copy to:

Fredric H. Aaron, Attorney at Law, PC
14 Vanderventer Avenue, Suite 212
Port Washington, NY 11050
Email: fredaaron@optonline.net

Any such notice shall be deemed to have been received on the date delivered to or received at the premises of the addressee (as evidenced by the date noted on the return receipt or overnight delivery receipt).

7.8. Reporting: Servicer will generate standard inventory/activity reports for each Asset. The form of such reports, medium, frequency and the required information to be contained therein shall be mutually agreed to by the Parties. Servicer shall also deliver such reports and other information with respect to the Assets as Client may reasonable request. Servicer will maintain a web site and or/datatbase providing access to Client to asset level data in connection with the Assets which shall include, at least, the fields specified by the client for such web site access as described in Schedule C.

7.9. Other Information: Servicer agrees to notify Client of any litigation involving the Assets within three (3) business days of Servicer's discovery of same. At the request of Client, the Servicer shall prepare and provide to Client, as soon as practicable, any additional information and statements concerning the Assets as Client from time to time may reasonably request.

7.10. Counterparts: This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

7.11. Title to Assets: Assets referred to Servicer hereunder are referred for the purpose of providing the services hereunder and nothing herein shall be deemed to convey to Servicer any right, title or ownership interest in such Assets.

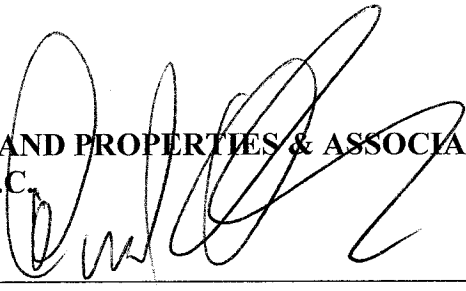
7.12. WAIVER: TO THE FULLEST EXTENT PERMITTED UNDER LAW, EACH PARTY IRREVOCABLY WAIVES ITS RIGHT TO TRIAL BY JURY IN ANY MATTER INVOLVING OR RELATED TO THIS AGREEMENT.

7.13. Entire Agreement: This Agreement and its attachments set forth the entire agreement and understanding between the Parties as to the subject matter hereof and merges and supersedes all prior discussions and agreements with respect thereto.

[Signatures on Following Page]

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their respective duly authorized representative as of the day and year first above written.

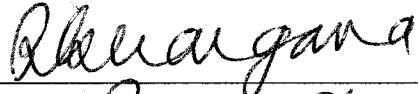
ISLAND PROPERTIES & ASSOCIATES,
L.L.C.

By: 

Name:

Title:

MANGOTREE REAL ESTATE
HOLDINGS, L.P.

By: 

Name: Rakesh Bhargava

Title:

Manager of
General Partner

SCHEDULE A

SERVICES

List of services

- Gather detailed information regarding all foreclosures in the market.(presently Long Island and New York City)
- Monitor all foreclosures, including value, expected sales price, actual sales price, lender discounts and more.
- In-house legal research team to perform full lien and judgment searches as well as legal case law research where needed.
- Value properties based upon in-house research of all data available as well as property visits by exclusive, full time field representatives. It is expected that this provides IPA with more accurate and conservative valuations which provide IPA with greater protection and profit.
- Maintain an exclusive database with all pertinent information to make intelligent investment decisions and report accurately as needed.
- Maintain a well trained staff who can discuss various scenarios with foreclosing banks, subordinate lien holders and distressed property owners.
- Accurate assessments of construction work to be performed. Providing alternative plans for obtaining the most value for your REO held property.
- Skip tracing
- Auction strategies including visiting properties and comparables prior to auction and then attending the auction and bid for properties in the Client's best interest.
- Purchase distressed notes for Client
- Purchase discounted surplus for Client
- Enter into partnerships with other parties to purchase distressed real estate and notes related thereto.
- Provide complete, start-to-finish processing of residential, Coop/Condo, Commercial and Industrial foreclosures.
- Post-Sale REO and Eviction Services
- Market and sale of properties and other assets.
- Document Preparation including Loan Documents, Assignments, Grant Deeds, etc
- Collecting payments and performing all the standard "mortgage servicing" functions on loans purchased.
- Maintain insurance on all Assets under management.

SERVICING FEES

A. Defined Terms

“Net Profits,” “Net Loss” shall be defined as Gross Revenue from an Asset less the aggregate of the Closing Expenses, Improvement Expenditures, Carrying Charges, and any other reasonable expenses normally incurred with the Asset.

“Gross Revenues” shall mean the gross proceeds realized from the Asset plus, with respect to Property, income earned and other revenues derived, if any, from rentals or otherwise during the ownership by Client.”

“Closing Expenses” shall mean expenses incurred in connection with the Asset, including without limitation, realtor brokerage commissions, advertising charges, reasonable legal fees, transfer taxes and recording fees.

“Improvement Expenditures” shall mean commercially reasonable expenditures made in connection with the rehabilitation, maintenance, repair and improvement of an Asset which is real property, whether or not such expenditures would be regarded as capital expenditures or could be added to the basis of such property for tax, accounting or any other purposes; Except for an allocation of overhead not to exceed 5% of cost there will be no additional charges added to the cost of construction by Servicer or its affiliates.

“Carrying Charges” shall mean the ordinary and necessary charges paid by the Client in connection with its ownership of an Asset which is real property, including, without limitation, debt service (including interest on capital proceeds used to finance the purchase, rehabilitation, improvement and sale of such real property), insurance premiums and commercially reasonable management expenses directly related to the ownership, rental, rehabilitation, repair and maintenance of such property.

B. Payment of Fee. Upon receipt by Client and clearance of the funds from the closing, sale and/or disposition of an Asset, Client will pay to Servicer with respect to each Asset serviced pursuant to this Agreement (the “Servicing Fee”) an amount equal to (x) 50% multiplied by the Net Profit from the disposition of such Asset, less (y) 50% of the Net Losses, if any, from the disposition or write-off of Assets which were not paid to Client as set forth in the last sentence hereof or deducted from the Net Profit from the sale of any other Asset.. Client shall make the payment due hereunder within 5 business days of the disposition of each Asset giving rise to such payment by wire transfer of immediately available funds to an account designated by Servicer in writing. Payment shall be accompanied by a detailed report setting forth the calculation of the aggregate Net Profit from such sale. In the event the disposition or write off of an Asset results in a Net Loss, the Servicer, at the Client’s option, will either pay to Client upon demand an amount equal to 50% of such Net Loss, or set off 50% of such Net Loss from the Servicing Fee payable to the Servicer from the disposition of other Assets.

C. Determination of Net Profits/Net Losses. The Servicer shall permit the Client upon request of the Client, to review the relevant books and records of the Servicer at the Servicer's place of business for purposes of confirming the determination of Net Profits/Net Losses. If the Client disagrees with any Net Profit/Net Loss calculation (the "Disputed Calculation") then the Client shall notify Servicer in writing (the "Notice of Disagreement") of such disagreement. The Notice of Disagreement shall set forth in detail the basis for the disagreement and the Servicer's computation of the Disputed Calculation. Thereafter, the Servicer and the Client shall attempt in good faith to resolve and finally determine the Disputed Calculation. If the Servicer and the Client are unable to resolve the disagreement within twenty (20) days after delivery of the Notice of Disagreement, then the Client and the Servicer shall select a mutually acceptable, independent accounting firm (such accounting firm the "Independent Accountant") to resolve the disputed items and make a determination of the Disputed Calculation. Such determination will be made, and written notice thereof given to the Client and the Servicer, within sixty (60) days after such selection. The Independent Accountant's recalculation of the Disputed Calculation shall be final, binding and conclusive upon the parties hereto and no party shall have any right to contest such resolution. The scope of the Independent Accountants engagement shall be limited to the resolution of the items contained in the Notice of Disagreement, and the recalculation, if any, of the Disputed Calculation in light of such resolution. The fees, costs and expenses of the Independent Accountant, if any, selected in accordance with this paragraph will be borne by the Servicer if the Independent Accountants' determination of the Disputed Calculation result in an adjustment of 2% or more in the calculation of the "Disputed Calculation." Otherwise, such fees, costs and expenses shall be borne by the Client.

Insurance Requirements

Servicer will, at its own cost and expense, obtain and maintain in full force and effect, with financially sound and reputable insurers reasonably acceptable to Client?, liability insurance to cover Servicer's obligations under this Agreement. Upon execution of this Agreement, and before the commencement of any services, Servicer will provide Client with a Certificate of Insurance evidencing the following coverage and minimum limits of liability with such insurers:

- (a) **Insurance Policies:** Client will receive thirty (30) days' advance written notice in the event of a cancellation or material change in Servicer's insurance policy. Any insurance policy (i) shall not be modified, altered or canceled without thirty (30) day's prior written notice to Client; (ii) [reserved] and (iii) shall be primary and not contributing with any insurance coverage maintained by Client. When any insurance policy is renewed or replaced, the policy retroactive date must coincide with, or precede, the commencement of services on any Project Order. In any insurance policy other than a policy for Professional Liability, Servicer will name Client, its officers, directors, employees and agents as additional insured.
- (b) **Claims-Made Policies:** In any policies written on a "claims-made" basis (i) Servicer shall ensure that continuous coverage is maintained or an extended coverage period will be exercised for a period of not less than twenty-four (24) months, beginning from the time of issuance of final payment; (ii) in the event a "claims-made" policy is not renewed or replaced, ensure that such policy must have an extended reporting period of two (2) years; and (iii) the policies shall not contain any exclusion for claims arising out of purely business activities in which the insured professional is engaged as a sole proprietor, partner, officer, director or shareholder of a business enterprise.
- (c) **Coverage's must include the following:** Blanket Contractual liability, products and completed operations, independent contractors, loss or damage of data, severability of interest and waiver of subrogation against all parties described as additional insured. Client and Owner are to be named as additional insured's.